

On December 31, 2015, the State of Israel formally requested that the Department of State file a Suggestion of Immunity on behalf of Barak. See Decl. of Christopher M. Egleson in Supp. of Def.'s Mot. to Dismiss Ex. H, ECF No. 26 [hereinafter Diplomatic Note from Israel]. The United States respectfully submits this Suggestion of Immunity to inform the Court of the Executive Branch's determination regarding Barak's immunity from suit.

ARGUMENT

I. THE EXECUTIVE BRANCH HAS DETERMINED THAT BARAK IS IMMUNE FROM SUIT

A. The Executive Branch's Foreign Official Immunity Determinations Are Controlling

The conduct of the Nation's foreign affairs is committed to the political branches. Unlike sovereign immunity determinations with respect to foreign states, which are governed by the Foreign Sovereign Immunities Act ("FSIA"), 28 U.S.C. §§ 1330, 1602 et seq., the FSIA does not displace "the State Department's role in determinations regarding individual official immunity." *Samantar v. Yousuf*, 560 U.S. 305, 323 (2010). The Supreme Court in *Samantar* explained that, prior to the enactment of the FSIA, a two-step procedure, which developed under the common law, existed for resolving a foreign state's claim of sovereign immunity. *Id.* at 311. A foreign state sued in a court in the United States could request a "Suggestion of Immunity" from the Department of State. *Id.* If the Executive Branch then filed a Suggestion of Immunity, the court "surrendered its jurisdiction." *Id.* If the Executive Branch declined to file a Suggestion of Immunity, the court "had authority to decide for itself whether all the requisites for such immunity existed." *Id.* (quoting *Ex parte Peru*, 318 U.S. 578, 587 (1943)). In making that decision, "a district court inquired 'whether the ground of immunity is one which it is the established policy of the [Department of State] to recognize.'" *Id.* at 312 (quoting *Republic of Mexico v. Hoffman*, 324 U.S. 30, 36 (1945)) (alteration in original). The Court further explained that "the same two-step procedure was typically followed when a foreign official asserted